

The Industrial Disputes (Central) Rules

FORM O-3

To be submitted in triplicate (* * *)

See Rule 75-B(1)

Form of application for permission to lay-off to continue the lay-off of workmen in industrial establishments to which provisions of Chapter V-B of the Industrial Disputes Act, 1947 (14 of 1947) apply

To,

(The authority specified under sub-section (1) of Section 25-M).

Sir,

Under *sub-section (1)/sub-section (3) of Section 25-M of the Industrial Disputes Act, 1947 (14 of 1947) read with sub-rule (1) of Rule 75-B of the Industrial Disputes (Central) Rules, 1957 I/We hereby apply for * permission to the lay-off/permission to continue the lay-off of _____workmen of a total of _____workmen employed in my/our establishment with effect from _____for the reasons set out in the Annexure.

Permission is solicited *for the lay-off/to continue the lay-off of the said workmen.

Such of the workmen permitted to be laid-off will be paid such compensation, if any, to which they are entitled under sub-section (6) of Section 25-M read with Section 25-C of the Industrial Disputes Act, 1947 (14 of 1947).

*Yours faithfully,
(Signature)*

* Strike out whatever is inapplicable.

ANNEXURE

(Please give replies against each item)

Item No.

1. Name of the undertaking with complete postal address, including telegraphic addresses and telephone number.
2. Status of undertaking:-

- (i) Whether Central public sector/State public sector/ foreign majority company /joint sector, *etc.*
 - (ii) If belongs to large industrial house, please indicate the controlling group; and if a foreign majority company, indicate the extent of foreign holdings.
 - (iii) Whether the undertaking is licensed/registered and if so, name of licensing/registration authority and licence/registration certificate numbers.
3. (a) *Names and addresses of the affected workmen proposed to be laid-off/names and addresses of the workmen laid off before the commencement of the Industrial Disputes (Amendment) Act, 1976 (32 of 1976) and the dates from which each of them has been laid off.
 - (b) The nature of the duties of the workmen referred to in sub-item (a), the units/sections/shops where they are or were working and the wages drawn by them.
 4. Items of manufacture and scheduled industry/industries under which they fall.
 5. Details relating to installed capacity, licensed capacity and utilised capacity.
 6. (i) Annual production, item-wise for the preceding three years.
 - (ii) Production figures, month-wise, for the preceding twelve months.
 7. Work-in-progress, item-wise and value-wise.
 8. Any arrangements regarding off-loading or sub-contracting of products or any components thereof.
 9. Position of the order book--item-wise and value-wise for a period of six months, and one year next following, and for the period after the expiry of the said one year.
 10. Number of working days in a week with the number of shifts per day and the strength of workmen per each shift.
 11. Balance sheets, profit and loss accounts and audit reports for the last three years.
 12. Financial position of the company.
 13. Names of the inter-connected companies or

companies under the same management.

14. (i) The total number of workmen (category-wise), and the number of employees other than workmen as defined under the Industrial Disputes Act, 1947 (14 of 1947), employed in the undertaking.
(ii) Percentage of wages of workmen to the total cost of production.
15. Administrative, general and selling cost in absolute terms per year in the last three years and percentage thereof to the total cost.
16. Details of lay-offs resorted to in the last three years (other than the lay-off for which permission is sought), including the periods of such lay-offs, the number of workmen involved in each such lay-off and the reasons therefor.
17. Anticipated savings due to the *proposed lay-off/lay-off for the continuance of which permission is sought.
18. Any proposal for effecting savings on account of reduction in---
 - (i) managerial remuneration,
 - (ii) sales promotion cost, and
 - (iii) general administration expenses.
19. Position of stocks on last day of each of the month in the preceding twelve months.
20. Annual sales figures for the last three years and month-wise sales figures for the preceding twelve months both item-wise and value-wise.
21. Reasons for the *proposed lay-off/lay-off for the continuance of which permission is sought.
22. Any specific attempts made so far to avoid the *proposed lay-off/lay-off for the continuance of which permission is sought.
23. Any other relevant factors with details thereof;

*Strike out whatever is inapplicable.